

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schnur	Team: Team # 3	CCRB Case #: 201007108	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/25/2010 9:15 PM	Location of Incident: In front of § 87(2)(b)	Precinct: 75	18 Mo. SOL 11/25/2011	EO SOL 11/25/2011	
Date/Time CV Reported Tue, 05/25/2010 9:33 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 05/25/2010 9:33 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Caputo	27878	935156	AUTO CD
2. POM Andre Blake	27155	939924	075 PCT
3. POM Lewis Ortiz	13761	899683	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Andre Blake	Abuse: Officer Andre Blake stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POM Jason Caputo	Abuse: Officer Jason Caputo stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.POM Lewis Ortiz	Abuse: Officer Lewis Ortiz stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
D.POM Andre Blake	Abuse: Officer Andre Blake frisked § 87(2)(b)	§ 87(2)(b)
E.POM Jason Caputo	Abuse: Officer Jason Caputo frisked § 87(2)(b)	§ 87(2)(b)
F.POM Jason Caputo	Abuse: Officer Jason Caputo searched § 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(4-b), § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed a complaint with the CCRB via the call processing system on May 25, 2010 regarding an incident that occurred on the same date (encl. D1 – D2).

At approximately 9:15 p.m. on May 25, 2010, § 87(2)(b) and a male whose name § 87(2)(b) refused to provide to the CCRB were sitting on § 87(2)(b)'s front stoop at § 87(2)(b) in Brooklyn when a marked NYPD pulled up to them. The following allegations occurred:

Allegation A – Abuse of Authority: Officer Andre Blake stopped § 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: Officer Jason Caputo stopped § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: Officer Lewis Ortiz stopped § 87(2)(b) and § 87(2)(b) § 87(2)(g)

Allegation D – Abuse of Authority: Officer Andre Blake frisked § 87(2)(b) § 87(2)(g)

Allegation E – Abuse of Authority: Officer Jason Caputo frisked § 87(2)(b)

Allegation F – Abuse of Authority: Officer Jason Caputo searched § 87(2)(b) § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) *old, Hispanic, 5'11" tall, 220 pounds, brown hair, brown eyes*

CCRB Intake Statement

CCRB Phone Statement

CCRB In-Person Statement

On May 25, 2010, § 87(2)(b) provided a CCRB intake statement (encl. D1 – D2). On June 1, 2010, § 87(2)(b) provided a CCRB phone statement (encl. D3). On February 17, 2011, § 87(2)(b) provided an in-person CCRB statement (encl. D4 – D6). § 87(2)(g)

At about 9:15 p.m. on May 25, 2010, § 87(2)(b) was sitting on the front stoop of his home at § 87(2)(b) in Brooklyn with two friends, § 87(2)(b) and a male whose name he refused to provide to the CCRB. § 87(2)(b) was on the top stair, with his friends to either side of him and § 87(2)(b) seated a few steps down. The front door to § 87(2)(b)'s home, which leads into a small foyer, was ajar. The stoop is about six feet away from the street and the home has no front yard. The area is well lit and illuminated by street lights. § 87(2)(b) believed he was wearing a blue or grey work shirt and jeans. He was carrying his wallet in his back, right pants pocket. He was also wearing a belt, and clipped to the right side of it was his cell phone. A knife and scissors set that he uses for his work at a cable company was also clipped to the belt. § 87(2)(b) had nothing else on his person.

§ 87(2)(b) estimated that he, § 87(2)(b) and the other male had been on his stoop for one-and-a-half to two hours before the encounter with police officers occurred. During this time, the men sat and talked. No one else stopped by to talk or interact with the men. There were people out and about in the neighborhood, but to § 87(2)(b)'s knowledge nothing out of the ordinary was happening in the neighborhood.

At about 9:15 p.m., a marked NYPD van drove past the men. Three officers, identified through the investigation as Officer Jason Caputo formerly of the 75th Precinct, Officer Andre Blake of the 75th Precinct and Officer Lewis Ortiz of the 75th Precinct, were inside of the van. § 87(2)(b) believed Officer Caputo (whom he described in his CCRB phone statement as a “bald headed” Caucasian male in uniform who stood 5’8” tall, weighed 150 to 160 pounds and was in his mid-thirties) was driving. The van then reversed, moving back to the three men and stopping. All three officers exited the van. Officer Blake (whom § 87(2)(b) described in his CCRB phone statement as an African-American male in uniform who stood 5’10” tall, had “Afro style” hair and was in his late thirties to early forties) instructed § 87(2)(b) to come off the stoop, and § 87(2)(b) did so. In his CCRB phone statement only, § 87(2)(b) said he lifted up his hands to show he was not a threat and Officer Caputo said, “Don’t put your fucking hands up like that.” In the initial portion of his CCRB in-person statement, § 87(2)(b) said Officer Blake began to frisk him “for no apparent reason.” Upon being asked clarifying questions, however, § 87(2)(b) said Officer Blake directed § 87(2)(b) to Officer Caputo and then Officer Blake turned his attention to § 87(2)(b). Officer Blake frisked § 87(2)(b) all over his body and without targeting a particular area of his person. After § 87(2)(b)'s frisk, Officer Caputo instructed § 87(2)(b) to turn around and face Officer Caputo, and § 87(2)(b) did so; as a result, § 87(2)(b) did not see Officer Blake reach into any of § 87(2)(b)'s pockets. Officer Caputo then

frisked § 87(2)(b) all over his body and without targeting a particular area of his person. Officer Caputo reached into § 87(2)(b)'s back, right pocket and removed his wallet. This was the only item removed from § 87(2)(b)'s person. Throughout this incident, the third male remained sitting on the stoop and had no interactions with the officers.

After Officer Caputo finished frisking and searching § 87(2)(b) he detained § 87(2)(b). Meanwhile, Officer Blake went up the steps of § 87(2)(b)'s home and through the open door into the foyer. Here, Officer Blake “searched around,” limiting his search to the foyer. There are outdoor steps to the right side of § 87(2)(b)'s home that lead down to a basement. In his CCRB phone statement, § 87(2)(b) said Officer Ortiz shone his flashlight down these stairs – as if to look for paraphernalia – but did not go down the stairs. In his CCRB in-person statement, § 87(2)(b) said that, with a flashlight in hand, Officer Ortiz went down these steps. § 87(2)(b) could not see what Officer Ortiz did down there and estimated Officer Ortiz was there for one to two minutes.

Once the officers confirmed with each other that they had not found anything, they began to walk away from the location. In his CCRB phone statement only, § 87(2)(b) said he announced that he needed one of the officers’ badge numbers and that in response, Officer Blake walked away, mumbling his shield number under his breath; § 87(2)(b) was unable to obtain the shield number this way. § 87(2)(b) was able to obtain Officer Caputo’s shield number, which he provided during his CCRB intake statement as shield #27878, by reading it off of Officer Caputo’s shield. When § 87(2)(b) asked the officers for an explanation for the stop, Officer Blake said, “Because you moved.” § 87(2)(b) interpreted this to mean that Officer Blake believed § 87(2)(b) was trying to conceal something, but he could not attribute Officer Blake’s comment to any of § 87(2)(b)'s own actions. The officers left without issuing any summonses to the men. § 87(2)(b) believed the incident lasted five to ten minutes.

Photographic Array Viewing

On February 17, 2011, two single shot series of sequentially numbered photos were shown, one by one, to § 87(2)(b) (encl. D7 – D24).

The first series of photographs contained all light-skinned males assigned to the 75th Precinct’s SNEU team as listed on the Tour 3 roll call for May 25, 2010: Officer Javier Munoz; Officer Christopher Alvarado; Officer Jay Rivera; Officer Ortiz; Officer Caputo; Officer Jose Sandoval and Officer Joseph Tarlantino III. § 87(2)(b) examined the photographs and, after looking through all of them, examined Officer Munoz’s and Officer Caputo’s a second time. § 87(2)(b) was 40% certain that Officer Caputo was the officer who walked down the building’s outdoor steps toward the basement with a flashlight. After consideration, § 87(2)(b) said he did not recognize Officer Munoz.

The second series of photographs contained all dark-skinned males assigned to the 75th Precinct’s SNEU team as listed on the Tour 3 roll call for May 25, 2010: Officer Ricardo Lewis; Sergeant Terrence Creighton; Officer Blake; Officer Frantz Souffrant, Jr.; Officer Matthew Borden and Officer Damon Martin. § 87(2)(b) examined the second series of photographs and said he was 50% certain that Officer Blake was the officer who instructed him to come off the stoop, frisked § 87(2)(b) and looked around the foyer.

Victim: § 87(2)(b)

- § 87(2)(b) did not provide his pedigree information to the CCRB

CCRB Phone Statement

On June 1, 2010, § 87(2)(b) provided a CCRB phone statement (encl. D25).

At about 9:30 p.m. on May 25, 2010, § 87(2)(b) was sitting on § 87(2)(b)'s front stoop at § 87(2)(b) in Brooklyn with § 87(2)(b) and another male whose name § 87(2)(b) did not provide to the CCRB. § 87(2)(b) was wearing loose-fitting khaki Dickie's work pants and a grey work shirt. A marked NYPD van drove past the men, stopped and backed up. § 87(2)(b) believed there were three to four officers – identified through the investigation as Officer Caputo, Officer Ortiz, Officer Blake and, possibly, PO4 (described by § 87(2)(b) as a Caucasian ####) – inside of the van. The officers, led by Officer Blake, jumped out of the van and told § 87(2)(b) and § 87(2)(b) to stand up. Officer Caputo frisked § 87(2)(b) and Officer Blake frisked § 87(2)(b). Officer Blake also searched § 87(2)(b) by reaching into his pockets and pulling § 87(2)(b)'s wallet out of his back, right pocket. Officer Blake told the men, “We saw you hiding something in the building.” § 87(2)(b) asked the officers for their name and shield information, and in response Officer Blake turned his back to the men and re-entered the NYPD van. § 87(2)(b) was able to come around the front of Officer Caputo and record his information. The third male with § 87(2)(b) and § 87(2)(b) did not interact with the officers.

CCRB In-Person Statement

On February 17, 2011, the undersigned investigator went into the field to obtain an in-person CCRB statement from § 87(2)(b). § 87(2)(b) failed to appear for this scheduled and confirmed appointment and did not contact the CCRB to reschedule it. On February 23, 2011, § 87(2)(b) was sent a missed appointment letter and a missed appointment email. On March 21, 2011, after previous attempts, § 87(2)(b) was contacted by phone and scheduled a second in-person CCRB appointment for the following morning. § 87(2)(b) missed this second appointment and, as of the date of this report, has not contacted the CCRB to reschedule it. As a result, § 87(2)(b) did not provide an in-person CCRB statement.

NYPD Statements:

Subject Officer: OFFICER JASON CAPUTO

- § 87(2)(b) old, Caucasian, 5'7" tall, 170 pounds, brown hair, brown eyes
- 75th Precinct (at the time of incident), SNEU Prisoner Van, Officer Andre Blake and Officer Lewis Ortiz, marked RMP van #8599, in uniform, 3:00 p.m. to 11:35 p.m.

Memo Book Entries

Officer Caputo had no memo book entries regarding this incident and no memo book entries from approximately 9:15 p.m. on May 25, 2010 (encl. E2 – E3).

CCRB In-Person Statement

On March 30, 2011, Officer Caputo provided an in-person CCRB statement (encl. E4 – E5).

Officer Caputo recalled nothing about the alleged incident, and he did not recall stopping any individuals on the night in question. Officer Caputo was shown multiple photographs of § 87(2)(b) some of which showed § 87(2)(b) in front of the incident location, § 87(2)(b) in Brooklyn. The photographs did not prompt Officer Caputo's recollection of the incident, nor

did Officer Caputo recognize § 87(2)(b) Officer Caputo was not familiar with the location in which the alleged incident occurred.

Officer Caputo said officers assigned to the SNEU prisoner van will pick up prisoners when called by the SNEU chase or observation team. When not picking up prisoners, officers in the prisoner van will drive around the vicinity the SNEU observation team, which remains stationary at a designated location. If the officers inside of the prisoner van witness a crime be committed, they will effect a stop of the perpetrator, but generally officers assigned to the prisoner van do not effect stops.

Subject Officer: OFFICER ANDRE BLAKE

- § 87(2)(b) old, African-American, 5'8" tall, 180 pounds, black hair, brown eyes
- 75th Precinct, SNEU Prisoner Van, Officer Jason Caputo and Officer Lewis Ortiz, marked RMP van #8599, in uniform, 3:00 p.m. to 11:35 p.m.

Memo Book Entries

Officer Blake made no memo book entries regarding this incident and had no entries from approximately 9:15 p.m. on May 25, 2010 (encl. E7 – E9). Officer Blake's first entry was made at 9:50 p.m. and noted that there were five arrests at § 87(2)(b) in Brooklyn.

CCRB In-Person Statement

On March 30, 2011, Officer Blake provided an in-person CCRB statement (encl. E10 – E11).

Officer Blake recalled nothing about the alleged incident, and he did not recall stopping any individuals on the night in question for an investigation that did not lead to arrest. Officer Blake was shown multiple photographs of § 87(2)(b) some of which show him in front of the incident location. Officer Blake did not recognize § 87(2)(b) Officer Blake said that he was familiar with the location in which the alleged incident occurred, but he was not certain if it was a drug prone location.

Officer Blake said officers assigned to the SNEU prisoner van do not stop people, but rather other members of the SNEU team bring prisoners to them or the van is called to a location to pick up prisoners. Officers in the prisoner van do not perform observations. The prisoner van is usually parked some distance away from an ongoing SNEU set, and the van usually does not patrol around the area. Officer Blake could not recall if the prisoner van remained in one location on the date of incident.

Officers Not Interviewed

Because Officer Ortiz has been on terminal leave since February 9, 2011 (encl. E41) and is scheduled to retire on May 1, 2011 (encl. E15), he was not interviewed in relation to this case.

NYPD Documents

75th Precinct Stop, Question and Frisk Log

The 75th Precinct's Stop, Question and Frisk Log for May 25, 2010 shows that no Stop, Question and Frisk reports were prepared for § 87(2)(b) or § 87(2)(b) and that no reports were prepared by Officers Caputo, Blake or Ortiz (encl. D1).

75th Precinct SPRINT Index

The 75th Precinct SPRINT Index for all SPRINTs generated on May 25, 2010 between the hours of 8:00 p.m. and 11:59 p.m. shows that there is no SPRINT for the alleged incident (encl. D2 – D8).

75th Precinct Tour 3 Roll Call

The 75th Precinct Tour 3 roll call for May 25, 2010 shows that Officers Caputo, Blake and Ortiz were assigned to SNEU (encl. D9 – D22).

Status of Civil Proceedings

Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of April 15, 2011 with regard to the incident (encl. E18-A).

Civilians' Criminal History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilians' CCRB History

This is the first CCRB complaint filed by § 87(2)(b) (encl. B6). § 87(2)(b) filed CCRB § 87(2)(b)

Subject Officers' CCRB History

Officer Caputo has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. B1 – B2). Officer Blake has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. B3).

Officer Ortiz has been a member of the service for nineteen years and there are four substantiated CCRB allegations against him (encl. B4 – B5).

- In CCRB Case #9704492, a force allegation was substantiated against Officer Ortiz. On May 22, 1999, there was an OATH negotiation and Officer Ortiz lost twenty-five vacation days.
- In CCRB Case #9704521, force allegations and a discourtesy allegation were substantiated against Officer Ortiz. On May 9, 1999, there was an OATH negotiation and Officer Ortiz lost twenty-five vacation days.

Conclusion

Identification of Subject Officers

During his CCRB intake statement, § 87(2)(b) provided the shield number of the officer who allegedly frisked and searched him, shield #27878. CTS confirmed that this shield number belonged to Officer Jason Caputo, formerly of the 75th Precinct. The 75th Precinct's Tour 3 roll call for May 25, 2010 showed that Officer Caputo was assigned to SNEU, and Officer Caputo told the CCRB that his partners were Officer Andre Blake and Officer Lewis Ortiz, both of the 75th Precinct. Although during his photographic array viewing § 87(2)(b) tentatively identified Officer Caputo as the officer who walked down his building's outdoor steps toward the basement with a flashlight rather than the officer who frisked and searched him, Officer Caputo's pedigree generally matches § 87(2)(b)'s description of the subject officer and § 87(2)(b) was consistent throughout all three statements to the CCRB – made over the course of nine months – that shield #27878 belonged to the officer who frisked and searched him. § 87(2)(b) also told the

CCRB that § 87(2)(b) obtained the shield number of the officer who frisked and searched him.
§ 87(2)(g)

Both § 87(2)(b) and § 87(2)(b) said one African-American male officer participated in the incident. Officer Caputo told the CCRB that one of his partners on the date and time in question was Officer Blake. Officer Blake generally matches the civilians' descriptions of the subject officer, and during the photograph array viewing § 87(2)(b) was 50% certain that Officer Blake was the officer who instructed him to come off the stoop, frisked § 87(2)(b) and looked around the building's foyer. § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Allegations Not Pled

In his CCRB phone statement, § 87(2)(b) alleged that Officer Blake searched him. § 87(2)(b) failed to provide an in-person CCRB statement and § 87(2)(b) did not make a search allegation on § 87(2)(b)'s behalf. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A– Abuse of Authority: Officer Andre Blake stopped § 87(2)(b) **and** § 87(2)(b)

Allegation B – Abuse of Authority: Officer Jason Caputo stopped § 87(2)(b) **and** § 87(2)(b)

Allegation C – Abuse of Authority: Officer Lewis Ortiz stopped § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(b) alleged that Officer Blake, Officer Caputo and Officer Ortiz stopped him and § 87(2)(b) § 87(2)(b) instructing them to step off of § 87(2)(b)'s stoop and then detaining both men. In his phone statement, § 87(2)(b) corroborated the allegation. Officers Blake and Caputo both said they had no recollection of the incident, § 87(2)(g)

§ 87(2)(b) provided the CCRB with a subject officer's shield number during his intake statement, and police documentation corroborated that this officer, Officer Caputo, was assigned to SNEU on the date and time in question in a police vehicle that matched § 87(2)(b) and § 87(2)(b)'s description. Nearly nine months after the incident, § 87(2)(b) recognized Officer Caputo and Officer Caputo's partner, Officer Blake, from two photographic arrays collectively containing thirteen potential subject officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation D – Abuse of Authority: Officer Andre Blake frisked § 87(2)(b)

§ 87(2)(b) alleged that Officer Blake frisked § 87(2)(b) and, in his CCRB phone statement, § 87(2)(b) made the same allegation. § 87(2)(g)

[REDACTED]

Allegation E – Abuse of Authority: Officer Jason Caputo frisked § 87(2)(b)

Allegation F – Abuse of Authority: Officer Jason Caputo searched § 87(2)(b)

§ 87(2)(b) alleged that during the stop, Officer Caputo frisked and searched him. Officer Caputo had no recollection of the incident. § 87(2)(g)

[REDACTED]

§ 87(4-b) § 87(2)(g)

[REDACTED]

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date